

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-16

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

COSCO SHIPPING LINES CO., LTD.,

RESPONDENT.

**SAMSUNG ELECTRONICS AMERICA, INC.'S SUPPLEMENTAL MOTION TO
COMPEL PRODUCTION FROM COSCO SHIPPING LINES CO., LTD.**

I. INTRODUCTION

Pursuant to Your Honor's authorization¹ to file, this Supplemental Motion is submitted in support of SEA's Second Motion to Compel Production from COSCO Shipping Lines Co., Ltd., dated April 7, 2026, Dkt. 112 ("Second Motion"). The opening paragraph of the Introduction therein, SEA stated as follows:

The Presiding Officer requested SEA advise if the COSCO production on April 3, 2026, or any other basis, mooted SEA's expedited motion to compel dated February 11, 2026, which focused on COSCO's refusal to produce unredacted China-based documents. It does not. COSCO's most recent claim that it suddenly found a way to produce the documents and intends to finally do so rings decidedly hollow. COSCO has left a trail of unfulfilled promises on China documents, and COSCO still has not produced any unredacted China documents. The requested order compelling production of China-based documents is more necessary than ever.

Second Motion, Dkt. 112 at 1. COSCO's production remains materially deficient, and the pending Motion to Compel Production of China-Based Documents, dated February 11, 2026, Dkt. 95 ("First Motion"), and principally Section III(A) therein regarding evidence based in China, is not mooted; indeed new evidence shows that the requested relief is critically necessary.

COSCO has failed to meet its discovery obligations, including as a China-based FMC-regulated common carrier. The location of responsive materials in China does not excuse COSCO from conducting fulsome searches of knowledgeable employees and departments in China likely to have discoverable information and to produce responsive documents. Nevertheless, for many months COSCO delayed production of critical China-based documents for various shifting reasons—initially, COSCO did not search China-based documents at all; then COSCO claimed that there were seemingly impossible Chinese law barriers to discovery; later promised

¹ Your Honor provided authorization to the undersigned via email dated June 9, 2026.

production when faced with a motion to compel; and ultimately produced a limited subset while misrepresenting that its production was “complete,” when it plainly is not.

SEA respectfully submits this supplement because it is apparent that: (1) the pending motion has not been mooted by COSCO’s incomplete production of 2,700 documents, and (2) review of the limited documents provides specific evidence of COSCO’s ongoing discovery failures, among them that COSCO produced China-based documents from just three custodians, and from only one of at least three divisions at COSCO’s headquarters—divisions that COSCO itself identified as having knowledge and relevant decision making authority. *See* Declaration of Kristine Little, dated June 10, 2026 (“Exhibit C”) ¶¶5, 10–11.

An order compelling COSCO to produce China-based documents is necessary. SEA cannot prosecute its complaint without adequate discovery, including from China-based decision makers in COSCO’s headquarters, and COSCO’s conduct amply demonstrates that it cannot be relied upon to conduct appropriate searches or produce responsive China-based documents in good faith without an enforceable order to do so. Therefore, SEA respectfully requests an order that COSCO search additional custodians and systems, disclose its search methodology, and produce missing categories of responsive China-based documents forthwith.

II. BACKGROUND

On October 8, 2025, well over a month after SEA completed its document production, COSCO stated for the very first time that a substantial number of responsive documents were located in China and that these China-based documents were subject to unspecified Chinese laws requiring a prolonged review process (Dkt. 95, at 4). COSCO provided no timetable for production. *Id.* In November 2025, COSCO represented it was “working with separate Chinese counsel to review data in China in compliance with China’s laws, which limit the export of certain

data, creating significant and time-consuming hurdles for cross-border data sharing and production of documents.” (Dkt. 88 at 4). By February 2026, COSCO escalated its claims, arguing that producing documents from China would conflict with Chinese law and that there was a “significant, material risk of COSCO being found liable for violating PIPL.” (Dkt. 102 at 8.) COSCO claimed it could not even respond to SEA’s motion to compel without first obtaining a “declaration from a qualified Chinese attorney addressing the issues under Chinese law that affect the production of documents from China.” (Dkt. 98 at 2–3) (the motion was denied).

Concerned about the delay and its impact on discovery deadlines and SEA’s ability to prepare for depositions, SEA requested an affidavit detailing COSCO’s search methodology; COSCO refused. On March 4, 2026, in defiance of the Presiding Officer’s orders, COSCO filed a motion to supplement the record attaching an unsolicited Chinese law affidavit—the very thing the Presiding Officer had expressly stated was “not necessary.” (Dkt. 107); (Dkt. 110 at 1–2); (Dkt. 100 at 2). In that motion, COSCO’s Chinese counsel threatened that an order compelling production would require governmental review with “no statutory limit on the time any such review would take.” (Dkt. 107 at 2).

Then, on April 3, 2026—less than two weeks before the document production deadline—the impossible became possible, as COSCO began producing documents from China. (Dkt. 112 at 1). This dramatic reversal, after months of delay, rings hollow as prior claims of impossibility proved to be demonstrably false. COSCO had simply been seeking to exploit its status as a foreign-based controlled carrier to delay and obfuscate its discovery obligations. More importantly, SEA’s review of COSCO’s April 8, 2026 China-based production has revealed multiple dispositive deficiencies (set forth below), inhibiting its ability to properly prepare for depositions.

III. ARGUMENT

A. COSCO's Belated China-based Production Remains Materially Deficient

Despite COSCO's representations that it would "complete" its production of China-based documents, the approximately 2,700 documents produced to date are deficient in every material respect and provide only a surface-level insight into China-based U.S. operations. Exhibit C, ¶¶5–6. These deficiencies are not the product of inadvertence or good-faith disagreement over the scope of discovery. They reflect a pattern of deliberate minimization that has deprived SEA of documents essential to proving its claims.

i. *Entire Categories of Responsive Documents Are Absent.*

COSCO's incomplete (and implausibly small) production provides only a surface-level glimpse into the China-based operations that control U.S.-bound trade. Foundational documents are conspicuously absent, key personnel are unaccounted for, and the documents that do exist reveal gaps that cannot be explained by inadvertence. For a multinational carrier whose China headquarters directs pricing, contract negotiations, demurrage and detention policy, waiver approvals, and trade lane management for U.S. operations, this production is facially incomplete.²

First, the production is conspicuously devoid of policies and procedures from COSCO's China-based divisions—the very divisions that control U.S.-bound trade. While COSCO has produced some (though not all) North American Operations Center policies and procedures, there is a glaring absence of such items from COSCO's China headquarters, including from its Global Sales Division ("GSD") and American Trade Division ("ATD"). Exhibit C, ¶15. These divisions set, approve, and administer tariff rates, freight rates, surcharges, demurrage, detention, and free

² This pattern extends beyond China-based documents. For example, COSCO limited its Korea-based production to a single custodian—Keith Lee—despite evidence that other individuals played significant roles in Korea-related U.S. operations.

time applicable to U.S. shipments. Their respective policies and procedures are plainly applicable to U.S. trade and thus squarely responsive to SEA’s discovery requests.³ The absence of such foundational documents—from the very divisions that COSCO’s communications show direct U.S. pricing, D&D policy, and waiver decisions—is inexplicable.

COSCO has also failed to produce business performance self-assessments required by its own internal policies,⁴ which govern how COSCO evaluates its departments and subsidiaries—assessments relevant to how D&D collections factored into evaluations. Eleven documents reference a “Demurrage Index Assessment Memorandum-GSD”—revealing COSCO’s internal tracking of D&D collections and waiver rates to assess the GSD’s performance—yet no documents relating to that memorandum have been produced.⁵ Documents identifying individuals involved in corporate governance and oversight of relevant U.S.-based operations are also absent—critical to deposition preparation. Exhibit C, ¶18.

The few documents produced demonstrate a direct link between COSCO’s China headquarters and the conduct at issue: COSCO’s Shanghai office controls contract rates, approves or rejects requests for waivers of per diem charges,⁶ and is the driving force behind COSCO’s detention and demurrage and other invoice collection efforts.⁷ The absence of foundational documents from COSCO’s Chinese divisions is incomprehensible and the documents produced provide only a superficial and disjointed glimpse of COSCO’s internal processes.

³ These documents were initially requested on June 18, 2025—nearly 12 months ago. *See* Exhibit C-3, SEA’s First Set of Interrogatories and Document Requests, Request Nos. 13–15.

⁴ *See* Exhibit E, COSCO1046339.

⁵ *See, e.g.*, Exhibit F, COSCO1032512.

⁶ *See, e.g.*, Exhibit M COSCO1032353; Exhibit G, COSCO1036310.

⁷ *See, e.g.*, Exhibit H, COSCO1037727; Exhibit I, COSCO1029615.

The ATD exemplifies these gaps. In response to SEA’s Fourth Interrogatories, COSCO itself identified the ATD as one of the divisions “involved in some matters concerning the ocean shipment of goods to the United States, and some resolutions or attempted resolution of disputes concerning detention or demurrage charges.” Exhibit C, ¶10.⁸ Yet despite this verified response, COSCO’s production is virtually devoid of documents from the ATD. *See id.* ¶11. The documents that do exist reveal that ATD exercised significant decision-making authority over policies directly at the heart of this litigation. For example, COSCO0638845 demonstrates that ATD had the authority to approve major policy decisions, including the decision to block cargo releases due to outstanding per diem invoices. *See* Exhibit D. That same document shows that ATD approval was also required before any waiver of those charges could be granted. *Id.* Yet despite this central role, the entire production contains only a handful of emails reflecting ATD’s approvals or denials of such requests.

COSCO0638845 also highlights that the production is similarly incomplete and deficient with respect to the Shanghai Per Diem team (“SHAPD”). *See* Exhibit D. For example, the email correspondence in this document ends with a question to SHAPD regarding disputed per diem invoices, but COSCO’s production contains no response to the email. Other requests for waivers likewise contain no response,⁹ suggesting that COSCO has withheld responsive documents. Exhibit C, ¶13. And these are just examples that we know about from the incomplete production to date. The near total absence of ATD documents and the fact that many emails to and from

⁸ *See* Exhibit C-4, COSCO’s Responses & Objections to SEA’s Fourth Interrogatories & Second Requests for Admission, Interrogatory No. 1.

⁹ *See, e.g.,* Exhibit J, COSCO0306238; Exhibit K, COSCO0306400; and Exhibit L, COSCO1036871.

SHAPD are missing, despite the documented relevance and authority of these divisions, points directly to the inadequacy of COSCO's searches and custodian selection.

- ii. *COSCO Limited Its Production to Only Three Custodians, in One Division, Despite COSCO's Identification of Three Relevant Divisions.*

COSCO limited its production of China-based documents to only three custodians—Liu Gang, Liu Shuang, and Tang Wei. Exhibit C, ¶10. This selection is arbitrarily narrow, excluding individuals COSCO's own documents show are directly involved in the issues in dispute, and excluding custodians (and division group email distribution files) from two of the three divisions that COSCO identified in verified interrogatory responses as having relevant knowledge and decision-making authority. *See id.* ¶¶10–11.

Numerous additional individuals should have been searched, and relevant documents produced from these custodians, including but not limited to: Zhang Chunyi (Ethan Zhang), a GSD Strategic Customer Developing & Maintaining Department member who acted as a point of contact for COSCO headquarters and coordinated with U.S. leadership to address operational or escalation issues, particularly those involving demurrage and detention collection and disputes; Deng Xiaobin (Andy Deng), GSD leadership directly involved in D&D invoice collection and waiver requests¹⁰; and ATD members Zhao RuiBo and Shan Yin.¹¹ The few documents produced show that Shan Yin exercised clear decisional authority over waiver decisions,¹² yet the production contains almost nothing involving him. Exhibit C, ¶13. The absence of documents produced from the custodial files of (at least) these individuals renders COSCO's production materially incomplete.

¹⁰ *See* Exhibit M, COSCO1032353.

¹¹ *See, e.g.,* Exhibit G, COSCO1036310; Exhibit N, COSCO0988499; Exhibit O, COSCO1026444.

¹² *See, e.g.,* Exhibit D, COSCO0638845.

Although COSCO's own documents show that multiple Chinese employees have authority to waive per diem charges—including Deng Xiaobin and Shan Yin—only documents from the custodial files of Tang Wei were produced. Further, despite SHAPD's central role in per diem disputes, no documents from the custodial files of SHAPD members other than Liu Shuang (nor any from SHAPD's group distribution files) have been produced.¹³ Although COSCO produced custodial documents from Liu Shuang, COSCO0638845 reflects involvement of other SHAPD personnel in key disputed charges. *See* Exhibit D. The glaring production gaps from custodial files of involved personnel indicates that COSCO has not conducted a reasonable, good-faith search, and/or that COSCO selectively limited its searches, such that the approximately 2,700 documents from the narrow group of 3 custodial sources cannot constitute the full universe of responsive documents.

iii. COSCO Refused to Disclose Its Search Methodology

Compounding these deficiencies, COSCO has refused to provide any transparency regarding the search methodology employed for collection of its China-based documents—including systems queried, custodians searched, search terms employed, and date ranges applied. Exhibit C, ¶¶6, 19. This information would enable a more efficient evaluation of COSCO's production, but SEA's request for an affidavit was rebuffed. *See* Exhibit C-1, March 2, 2026 Email from SEA to COSCO. COSCO's continued secrecy reinforces the likely conclusion that its methodology was inappropriately constrained to minimize disclosure.

COSCO's actions mirror the discovery misconduct of another, foreign-based controlled ocean carrier in *SEA v. OOCL* (Dkt. No. 24-17). In that case, OOCL similarly limited custodian searches to a fraction of the individuals with relevant documents and refused to disclose its search

¹³ Other key SHAPD personnel include Gu Jie, Lu Guanlin, and Xiang Ling.

methodology, which ultimately led to the conclusion that “relevant documents [were] . . . located in the electronic records of custodians not searched.” *See* Order Following Second Status Conference, *SEA v. OOCL*, Dkt. No 24-17 (Feb. 20, 2026), at 2–3. OOCL also misrepresented the status of its production, claiming it had “completed its production” as of September 26, 2025—only to later serve approximately 3.59 GB of supplemental documents and continue rolling production for months thereafter.¹⁴ The Presiding Officer found that OOCL’s representations “[did] not appear to be accurate.” Order Following Second Status Conference, *SEA v. OOCL*, Dkt. No 24-17 (Feb. 20, 2026), at 2.

COSCO’s conduct here follows the same playbook and is at least as egregious—and, as set forth above, its deficiencies extend beyond custodian selection. Accordingly, the same remedy, if not a more stringent one, is warranted here. In *OOCL*, the Presiding Officer ordered OOCL to produce “a sworn declaration . . . from one (or more) knowledgeable witness(es) describing: a) the process by which it performed document searches in response to SEA’s discovery requests, including the date ranges used, the custodians or systems searched, and search terms used; b) identification of all other potentially relevant custodians or systems . . . and c) the process by which OOCL charged demurrage, detention and other fees.”¹⁵ *Id.* at 3. SEA respectfully requests that the Presiding Officer impose similar requirements on COSCO: ordering production of a sworn declaration describing its document search process, identifying all potentially relevant custodians

¹⁴ *See* Joint Status Report 4, *SEA v. OOCL*, Dkt. No. 24-17 (Dec. 1, 2025), at 7–8; SEA Mtn. Compel Discovery, *SEA v. OOCL*, Dkt. No. 24-17 (Jan. 23, 2026), at 5, 9.

¹⁵ COSCO has already been ordered to provide a similar affidavit after the same misconduct. In *Visual Comfort & Co. v. COSCO Shipping Lines Co., Ltd.*, the Presiding Officer found COSCO took inconsistent positions on its searches and required an affidavit from a knowledgeable witness detailing its search methodology, including searches performed, terms used, and any documents not produced. *See* Order Granting Complainant’s Second Motion to Compel in Part, *Visual Comfort & Co. v. COSCO, Shipping Lines Co., Ltd.*, Dkt. No. 24-01, 2025 FMC LEXIS 59, at 1–2, 11–12 (ALJ, Jan. 24, 2025).

or systems not yet searched, and compelling production of all responsive documents from the additional custodians and categories identified herein.

IV. CONCLUSION

COSCO's ongoing pattern of delay and misleading discovery tactics continues to prejudice SEA, including by impairing deposition preparation. Exhibit C, ¶¶ 20–21. Proceeding on a materially incomplete record would deprive SEA of key documents on core issues, including COSCO's D&D policies, waiver practices, and its China–U.S. command structure. The Presiding Officer has already recognized this obstruction; the May 5, 2026 Order all but found COSCO's counterclaim and third-party complaint were delay tactics rather than legitimate claims. *See* Dkt. 119. Your Honor has first-hand knowledge of COSCO's delays, shifting positions and unkept promises to produce China-based documents. Its latest excuses—belated “undue burden” and that SEA's supplement was “premature”—reflect shifting objections, not compliance. SEA respectfully requests that the Presiding Officer grant its motion to compel, as supplemented.

Dated: June 10, 2026.

Respectfully Submitted,

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CERTIFICATE OF SERVICE

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